

		The Court also does not find persuasive Goldman’s newly discovered evidence relating to Medford LLCs’ fee payments to Tucker Ellis. This action is one for the enforcement of Goldman’s judgment against LBG REC based on LBG REC’s assets. The fee payments in question were not made by LBG REC but by the Medford LLCs. Goldman has not demonstrated that the assets used by the Medford LLCs were LBG REC’s assets such that they are subject to satisfaction of Goldman’s judgment against LBG REC. Ultimately, Goldman’s claims that Lundin and Beiswenger are mismanaging the Medford LLCs by allegedly improperly paying their personal attorneys’ fees to Tucker Ellis are issues for disposition in the related California Action, not in this enforcement action. At bottom, Goldman has not produced sufficient evidence to demonstrate that the drastic, harsh, and costly remedy of appointing a receiver is necessary under the circumstances. Accordingly, Goldman’s receiver motion is DENIED. LBG REC shall give notice of all of the above.
109	Andrawes Husary vs. Shahidi 2025- 01487294	Motion – Pro Hac Vice The Court previously conditionally approved counsel’s application to appear Pro Hac Vice but ordered an amended application upon learning that the sponsoring attorney had passed away. Moving party has so far failed to comply with the Court’s order. The Court therefore continues this matter to the date of the rescheduled motion for stay and CMC with the proviso that the Court will consider whether to issue an amended order denying counsel’s PHV application for failure to file the amended application. Moving party is ordered to file the amended application 10 days before the continued hearing date of 07/23/2026 at 02:00 PM in Department CX102. Clerk to give notice
110	Sandoval vs. Cybex Security Solutions, LLC 2024- 01398109	Motion for Final Approval re Class and PAGA Settlement Plaintiff Vicente Sandoval’s Motion for Final Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On May 8, 2024, Plaintiff Vicente Sandoval, as an individual and on behalf of all others similarly situated (“Plaintiff”), filed a Class Action Complaint against Defendants Cybex Security Solutions, LLC and Sonitrol Orange County, LLC (“Defendants”). The Complaint asserts seven (7) causes of action for various violations of the Labor Code’s wage-and-hour provisions and unfair business practices. On July 15, 2024, as a matter of right, Plaintiff filed the operative First Amended Class and Representative Action Complaint (“FAC”) adding a claim for PAGA penalties. Defendants answered on September 9, 2024.

On January 24, 2025, the parties attended mediation and accepted the mediator's settlement proposal.

On June 5, 2025, Plaintiff filed a Motion for Preliminary Approval of Class Action and PAGA Settlement, and submitted the Stipulation of Settlement and Class Notice for the Court's review. After the Court expressed certain concerns about the Settlement Agreement and other matters, the parties prepared and executed the Amendment to Stipulation of Settlement (collectively with Stipulation of Settlement, "Settlement Agreement"). On October 23, 2025, at the second hearing on the matter, the Court granted the motion for preliminary approval. (ROA #88.) On October 31, 2025, the Court entered the order granting preliminary approval. (ROA #94.)

On April 20, 2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. The motion seeks approval of the Settlement Agreement, which provides for the settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount ("GSA") of \$185,000. The GSA includes \$10,000 allocated for PAGA penalties.

The Class is comprised of 42 Class Members, defined as "all current and former non-exempt employees who worked for Defendants in California between May 8, 2020 and September 11, 2025 (the 'Class Period')."

The settlement also includes 28 Aggrieved Employees, defined as "all current and former non-exempt employees who worked for Defendants in California at any time from May 8, 2023 through September 11, 2025 (the 'PAGA Period')."

The settlement administrator, Apex Class Action, LLC, reports as follows:

- On 12/2/2025, the administrator sent class notices via U.S. Mail to 42 Class Members, including 28 Aggrieved Employees.
- Initially, four (4) class notices were returned as undeliverable, but after skip-tracing, the administrator remailed those notices. As of 4/13/2026, zero (0) class notices were returned to the administrator as undeliverable.
- As of 4/13/2026, no requests for exclusion, objections, or workweek disputes were received.

Therefore, 100% of the Class is participating in the settlement.

The Court concludes that the \$185,000 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. The Court also certifies the defined Class for settlement purposes only.

The Court concludes that an attorneys' fee award totaling \$61,666.66 or 1/3 of the GSA, constituting a 0.67 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action's contingent nature and the results achieved.

The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage and copying. Therefore, the Court awards

\$7,570.58 in costs after deducting \$41.21 from the requested amount for the following cost items:

- 2/29/2024 – Postage - \$14.72
- 2/29/2024 – Copying - \$1.75
- 5/31/2024 – Postage - \$15.20
- 5/31/2024 – Copying - \$3.50
- 10/31/2024 – Postage - \$5.54
- 3/19/2026 – Copying - \$0.50

The Court further concludes that a Class Representative Enhancement Payment of \$5,000 is fair, adequate, and reasonable for a class and settlement of this size, considering Plaintiff's contribution to the case.

The Court has identified the following minor issues with the moving papers, which must be addressed by Class Counsel before the Court will sign the Order Granting Final Approval and Judgment:

1. The moving papers do not state the total number of workweeks.
2. As the moving papers do not state the total number of workweeks and do not address the escalator clause, it is unknown whether the escalator clause has been triggered.

These issues must be addressed by Class Counsel within five (5) court days.

Upon resolution of these issues, the Court will grant the instant motion and approve the following specific awards and disbursements from the GSA:

- Attorneys' fees totaling \$61,666.66 awarded to Class Counsel;
- Litigation costs totaling \$7,570.58 awarded to Class Counsel;
- Settlement administration costs of \$3,990.00 awarded to Apex Class Action, LLC;
- Class Representative Enhancement Payment of \$5,000.00 awarded to Plaintiff Vicente Sandoval; and
- \$7,500.00 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties.

The Net Settlement Amount payable to all Class Members is \$99,272.76, including the \$2,500.00 in PAGA penalties to be distributed to the Aggrieved Employees, in accordance with the terms of the Settlement Agreement. Pursuant to the Settlement Agreement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments.

Within five (5) court days, Class Counsel must submit a revised Proposed Order of Final Approval and Judgment with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. This department hears Law & Motion on Thursdays. Counsel must select a Final Accounting hearing date on a Thursday.

		3. Supporting papers must be submitted at least 16 court days before the Final Accounting hearing (calculated while accounting for court holidays). Final Accounting will be set in accordance with the Court’s Order of Final Approval and Judgment after Class Counsel proposes an appropriate date in the revised proposed order and judgment. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller’s Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.
111	Rotaru vs. Blower-Dempsey Corporation 2024-01409012	Motion for Preliminary Approval of Class and PAGA Settlement The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of a \$288,000 class and PAGA action settlement. Upon the submission of the documents described below, the motion will be GRANTED. Counsel states ROA 74 Ex. 4 is “[a] true and correct copy of each confirmation from the LWDA” reflecting service on the LWDA of the moving papers. ROA 74 ¶ 75. This is a single confirmation, and it does not identify the documents purportedly served. All proofs of service to the LWDA must be in the form of the proof of service following ROA 74. Assuming compliance with the above, and based on a review of the settlement, the court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the final approval hearing. The final approval hearing is scheduled for November 12, 2026 at 2:00 p.m. in Department CX102. The motion for final approval shall be filed at least 16 court days before the hearing. If counsel cannot meet this deadline, then counsel must request a continuance of the hearing. Failure to do so may result in the issuance of an OSC re: Monetary Sanctions. At the final approval hearing, evidence supporting the request for an award of attorneys’ fees should be presented in the form of time records or a summary of time spent on the substantive tasks to enable the court to evaluate the lodestar and costs claimed. Class counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. Although a determination regarding the amount of the attorneys’ fees award will not be made until final approval, the court is unlikely to approve attorneys’ fees in excess of thirty percent (30%) of the GSA absent unique circumstances. Class counsel should address whether any such unique circumstances exist. Requests for litigation costs should